INDIA NON JUDICIAL

# Government of Karnataka

## e-Stamp

| | | |
|---|---|---|
| Certificate No. | : | [illegible] |
| Certificate Issued Date | : | [illegible] |
| Account Reference | : | [illegible] |
| Unique Doc. Reference | : | [illegible] |
| Purchased by | : | [illegible] LOGISTICS PARK PRIVATE LIMITED |
| Description of Document | : | Article 12 Bond |
| Description | : | [illegible] |
| Consideration Price (Rs.) | : | 0<br>(Zero) |
| First Party | : | [illegible] LOGISTICS PARK PRIVATE LIMITED |
| Second Party | : | [illegible] INDUSTRIAL PARKS PRIVATE LIMITED |
| Stamp Duty Paid By | : | [illegible] LOGISTICS PARK PRIVATE LIMITED |
| Stamp Duty Amount(Rs.) | : | [illegible]<br>[illegible] |

DATED AUGUST [illegible]

**SECURITIES SUBSCRIPTION AGREEMENT**

**AMONGST**

**EMBASSY INDUSTRIAL PARKS PRIVATE LIMITED**

**AND**

**[illegible] PROJECTS LIMITED**

**AND**

**SOUTHERN LOGISTICS PARK PRIVATE LIMITED**

**AND**

**KRISHAN KAPUR**

**AND**

**[illegible]**

## TABLE OF CONTENTS

## SECURITIES SUBSCRIPTION AGREEMENT

This securities subscription agreement is entered into at Bengaluru on this 7th day of August, [illegible] ("Execution Date") by and amongst:

1. ICK INFRA PROJECTS LIMITED (formerly [illegible] Limited), a company incorporated under the Companies Act, 1956 with CIN [illegible] and having its registered office at No. [illegible], 1st Floor, Westminster, Cunningham Road, Bengaluru-560052, Karnataka (hereinafter referred to as "ICK", which expression shall include its successors and permitted assigns) of the FIRST PART

AND

2. EMBASSY INDUSTRIAL PARKS PRIVATE LIMITED, a company incorporated under the Companies Act, 1956 with CIN [illegible], and having its registered office at Embassy Point, 150 Infantry Road, Bengaluru [illegible] (hereinafter referred to as "EIPPL", which expression shall include its successors and permitted assigns) of the SECOND PART

AND

3. [illegible] LOGISTICS PARK PRIVATE LIMITED, a company incorporated under the Companies Act, 2013 with CIN [illegible], and having its registered office at No. [illegible], 1st Floor, Westminster, Cunningham Road, Bengaluru [illegible], Karnataka (hereinafter referred to as "Company", which expression shall include its successors and permitted assigns) of the THIRD PART

AND

4. [illegible] KAPUR, aged [illegible] years, holding PAN [illegible], residing at [illegible], Mumbai, Maharashtra [illegible] (hereinafter referred to as "KK", which expression shall, unless repugnant to the context or meaning thereof, be deemed to include his heirs, successors and permitted assigns) of the FOURTH PART

AND

5. [illegible] KAPUR, aged [illegible] years, holding PAN [illegible], residing at [illegible], Bengaluru, Karnataka – [illegible] (hereinafter referred to as "[illegible]", which expression shall, unless repugnant to the context or meaning thereof, be deemed to include [illegible] heirs, successors and permitted assigns) of the FIFTH PART.

KK and TK shall [illegible] be referred to individually as a "JCK Majority Shareholder" and collectively as the "JCK Majority Shareholders".

Each of JCK, EIPPL, JCK Majority Shareholders and the Company shall hereinafter be referred to individually as a "Party" and collectively as the "Parties".

RECITALS

A. EIPPL, inter alia, carries on the business of developing, operating, managing and offering industrial and warehousing parks [illegible]. JCK also carries on the business of construction and development of industrial and warehousing parks.

B. EIPPL and JCK have agreed to undertake the development of a certain portion of Land as a joint venture through the Company, where initially [illegible] of the Share Capital shall be [illegible] held by EIPPL and JCK [illegible] the remaining [illegible] of the Share Capital. Upon completion of [illegible] in relation to the development of the Project [illegible] in relation to the Land in favour of the Company, EIPPL shall hold [illegible] of the Share Capital and the remaining [illegible] of the Share Capital shall be held by JCK.

C. EIPPL, relying upon the representations, [illegible] and [illegible] provided by the Company and JCK under the Definitive Agreements, proposed to invest in the Company (i) Rs. [illegible] ([illegible]) which shall be towards acquisition of Equity Shares [illegible] of the Share Capital of the Company, and (ii) Rs. [illegible] ([illegible]) ("CCD Subscription Amount") which shall be towards acquisition of [illegible] CCDs ("EIPPL CCDs") [illegible] per EIPPL CCD [illegible] Closing Date, and (iii) Rs. [illegible] ([illegible]) ("NCD Subscription Amount") which shall be towards acquisition of [illegible] NCDs ("EIPPL NCDs") and the Company has agreed to issue and allot the EIPPL CCDs and the EIPPL NCDs to EIPPL by way of a preferential allotment on a private placement basis on the terms and conditions stipulated in this Agreement.

D. [illegible] with the execution of this Agreement, the Parties have also executed [illegible] subscription and purchase agreement of even date in respect of the acquisition of Equity Shares [illegible] ("SSPA").

E. The Parties have [illegible] shareholders' agreement [illegible] which shall come into effect on Closing Date [illegible] rights and obligations in relation to the management of the Company and other matters ("Shareholders' Agreement").

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth in this Agreement, and for other good and valuable consideration, the sufficiency of which is acknowledged by the Parties, the Parties hereby agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

The following capitalised words and expressions will have the meanings assigned to them herein unless otherwise defined in any part of this Agreement. The capitalised terms used but not defined herein, shall have the meaning set forth in the SSPA.

"Agreement" shall mean this securities subscription agreement, together with the Schedules hereto, as may be amended, modified or supplemented from time to time in accordance with its terms.

"CCDs" shall mean compulsorily convertible debentures, the terms whereof are provided in SCHEDULE 4.

"CCD Balance Subscription Amount" shall have the meaning as set forth in Clause 2.2.

"CCD First Call Amount" shall have the meaning as set forth in Clause 2.2.

"CCD Subscription Amount" shall have the meaning assigned to this term in Recital [illegible].

"Closing" shall have the meaning as set forth in Clause 4.1.

"Closing Date" shall have the meaning assigned to the term "Closing Date" under the SSPA;

"Closing Resolutions" shall mean the following board resolutions:

(i) Approving the issue and allotment of the EPPL CCDs on the Closing Date; and

(ii) Authorising the filing of necessary forms with jurisdictional registrar of companies.

"Definitive Agreements" shall have the meaning set out in the SSPA and shall be deemed to include this Agreement.

"EPPL Representations" shall mean the representations set out in Clause 11.1.

"DFPPL CCDs" shall have the meaning assigned to the term in Recital C.

"DFPPL 20CDs" shall have the meaning assigned to the term in Recital C.

"Equity Closing" shall have the meaning assigned to the term "Closing" under the ESPA.

"Execution Date" shall mean the date of execution of this Agreement.

"FCK Demat Account" shall mean the following account held by FCK:

Depository Participant (DP): [illegible]

DP ID: [illegible]

Client ID: [illegible]

ISIN: [illegible]

"FCK Loan" shall have the meaning assigned to the term in Clause 4.1(b).

"FCK NCDs" shall have the meaning assigned to the term in Clause 2.2.

"FCK Subscription Amount" shall have the meaning assigned to the term in Clause 2.2.

"Material Adverse Effect" shall mean any event or occurrence or general series of events, occurrences or facts that individually or in the aggregate has, had or would reasonably be expected to have an adverse effect on:

(i) The validity or enforceability of the Definitive Agreements or of the rights or remedies of the Parties thereunder;

(ii) The assets, business, property, liabilities, financial condition, results or operations or prospects of the Company;

(iii) The ability of any Party to perform its obligations under the Definitive Agreements; or

(iv) The terms and validity of any material Consents or Governmental Approvals required for the Company to carry on the Business.

"NCDs" shall mean unlisted non-convertible debentures, the terms whereof are annexed as SCHEDULE 4.

"NCD Subscription Amount" shall have the meaning assigned to the term in Recital C.

"Pre-Closing" shall have the meaning set out in Clause 5.1.

"Pre-Closing Date" shall have the meaning as set forth in Clause 6.1;

"Pre-Closing Resolutions" shall mean the following resolutions:

(i) Of the Board:

(A) Approving the issue of the EIPPL CCDs, EIPPL NCDs and JCK NCDs together with Equity Shares as per the SSPA on a preferential allotment basis as required under the Act, including approving the offer letter in Form PAS-4; and

(B) Authorising the filing of necessary forms with jurisdictional registrar of companies.

(ii) Of the shareholders:

(A) Approving the issue of the EIPPL CCDs, EIPPL NCDs and JCK NCDs together with Equity Shares as per the SSPA on a preferential allotment basis.

"Share Capital" shall mean the share capital of the Company;

"SSPA" shall have the meaning as set forth in Recital [illegible]; and

"Shareholders' Agreement" shall have the meaning as set forth in Recital [illegible].

1.2 Interpretation

The rules of interpretation stated in clause 1.2 of the SSPA shall mutatis mutandis apply to this Agreement and shall be deemed to be incorporated herein by reference. Any reference to "Agreement" thereunder shall be read as a reference to this Agreement.

## 2. AGREEMENT TO SUBSCRIBE

2.1 In consideration of the Company Warranties and the JCK Representations and subject to the terms, conditions and provisions of this Agreement, other representations, warranties, covenants, undertakings and indemnities of the Company and JCK as set forth under this Agreement and the Definitive Agreements, EIPPL agrees to invest the CCD Subscription Amount and the NCD Subscription Amount in the Company towards subscription to (i) the EIPPL CCDs, partly paid to the extent of Rs. [illegible] per EIPPL CCD as of the Closing Date, and (ii) the EIPPL NCDs respectively, with each CCD and NCD having rights attached to it under this Agreement, and the Company shall issue and allot to EIPPL the EIPPL CCDs and the EIPPL NCDs in consideration for the CCD Subscription Amount and the NCD Subscription Amount, such that EIPPL shall receive full legal and beneficial ownership of the EIPPL CCDs and the EIPPL NCDs, free and clear from all Encumbrances along with all rights, title and interest attaching thereto.

[illegible] XCK agrees to invest Rs. [illegible] (Rupees One Crore Sixty Five Lakhs only) ("**XCK Subscription Amount**") in the Company towards subscription to [illegible] ([illegible]) NCDs ("**XCK NCDs**"), as on the Pre-Closing Date, and the Company shall issue and allot to XCK the XCK NCDs in consideration for the XCK Subscription Amount, such that XCK shall receive full legal and beneficial ownership of the XCK NCDs, free and clear from all Encumbrances along with all rights, title and interest attached thereto.

2.3 It is hereby clarified that only Rs. [illegible] (Rupees One Lakh [illegible] Thousand Eight Hundred only) of the CCD Subscription Amount ("**CCD First Call Amount**") shall be paid on the Closing Date and the balance amount of Rs. [illegible] (Rupees One Crore [illegible] Lakhs Eight Hundred and Seventy One and Seventy Four paise) of the CCD Subscription Amount ("**CCD Balance Subscription Amount**") shall be payable by way of calls to be made by the Board within a period of [illegible] months, or the Board's discretion, [illegible] from the Closing Date; provided however that the CCD Balance Subscription Amount shall be called for by the Board forthwith, if the construction finance for the Project is not obtained within [illegible] months from the Closing Date and the Company requires funds for the implementation of the Project. The Parties agree that any default by EIPPL in payment of the CCD Balance Subscription Amount in accordance with the terms of this Clause shall be considered to be an Event of Default under this Shareholders' Agreement.

2.4 The proceeds from the issuance of the CCDs and the NCDs shall be utilised towards servicing debt, construction and approvals related costs, general working capital requirements and other expenses in the normal course of business of the Company.

## 3. CONDITIONS PRECEDENT

3.1 The obligation of EIPPL to subscribe to the EIPPL CCDs and proceed with the Closing is subject to (i) commencement of the [illegible] Closing; and (ii) completion of each of the conditions set out in SCHEDULE 1 (collectively, the "**Conditions Precedent**") by the Company and XCK as soon as possible after the Execution Date and, in any event prior to the Long Stop Date.

3.2 Upon satisfaction of the last of the Conditions Precedent, the Company and XCK shall deliver to EIPPL a letter in the form set out in SCHEDULE [illegible] certifying completion of all Conditions Precedent (except Conditions Precedent that may have been waived by EIPPL) and enclosing true copies of all necessary documents evidencing fulfillment of each of the Conditions Precedent.

3.3 Notwithstanding anything contained elsewhere in this Agreement, EIPPL has the right at its sole discretion to waive any of the Conditions Precedent, by notification to the Company and XCK. EIPPL may, in lieu of performance of any of the Conditions Precedent prior to the Closing Date, require that each of the Conditions Precedent (or [illegible]) be [illegible] and/or are [illegible] within [illegible] from the Closing Date or such date as determined by EIPPL at its sole

[illegible]

4. CLOSING

4.1 On a date mutually agreed between the Parties ("Pre-Closing Date"), the following actions shall be completed ("Pre-Closing"):

(i) EIPPL shall remit the [illegible] Subscription Amount into the Company Designated Bank Account.

(ii) The Board shall pass the board resolutions for issue and allotment of the EIPPL NCDs, file the Form PAS-3 in relation to allotment of the EIPPL NCDs and provide certified copies of resolutions and the filings made to EIPPL.

(iii) The Company shall repay the existing loan of Rs. [illegible] [illegible] availed from JCK ("JCK Loan") and [illegible] appropriate resolutions for repayment of the same and shall obtain a no-dues certificate from JCK in form and manner acceptable to EIPPL.

(iv) JCK shall remit the JCK Subscription Amount into the Company Designated Bank Account.

(v) The Board shall pass the resolutions for allotment of the JCK NCDs to JCK.

(vi) The Company shall take all steps to ensure that the EIPPL NCDs are credited to the EIPPL Demat Account.

(vii) The Company shall take all steps to ensure that the JCK NCDs are credited to the JCK Demat Account.

4.2 On the Closing Date, the Parties shall endeavour to proceed to completion of all the actions mentioned in Clause 4.4 ("Closing").

4.3 If Closing has not occurred on or before the Long Stop Date, this Agreement may be terminated at the option of EIPPL.

4.4 On the Closing Date, the following actions shall take place:

(i) EIPPL shall remit the [illegible] into the Company Designated Bank Account.

(ii) The Board shall pass the Closing Resolutions, file the Form PAS-3 in relation to allotment of the EIPPL NCDs and provide certified copies of the Closing Resolutions and the filings made to EIPPL.

(iii) The Company shall take all steps to ensure that the EIPPL NCDs are credited to the EIPPL Demat Account.

[illegible] All actions contemplated by this Agreement to be consummated at the Pre-Closing shall be deemed to occur simultaneously and the Pre-Closing as contemplated herein shall not be deemed to have occurred unless all such actions are consummated and are duly effective.

[illegible] All actions contemplated by this Agreement to be consummated at the Closing and under the SSPA at the Equity Closing shall be deemed to occur simultaneously and the Closing as contemplated herein shall not be deemed to have occurred unless all such actions are consummated and are duly effective.

[illegible] The Fully Diluted Share Capital of the Company as on the Execution Date, as on the Closing Date prior to Closing and after the completion of Closing on the Closing Date shall be as set forth in Part A, Part B and Part C of SCHEDULE [illegible] respectively.

6. CONDUCT BETWEEN EXECUTION OF THIS AGREEMENT AND THE CLOSING DATE

[illegible] During the period between the Execution Date and the Closing Date, the Parties shall conduct themselves in the manner set out in the Clause [illegible] of the SSPA and shall act in adherence to the terms and conditions set forth therein.

7. COVENANTS

[illegible] Within [illegible] days from the Closing Date or such other time period prescribed under Applicable Law, whichever is lower, the Company shall have and JCK shall ensure that the Company shall have completed the statutory filings with the Registrar of Companies in respect of the transactions set out in Clauses [illegible] and [illegible], other than as specifically set out in Clause [illegible] and [illegible].

[illegible] In the event of a failure by the Company or JCK to complete the Conditions Precedent within [illegible] days from the Execution Date and issuance of notice by KIPPL to the Company requiring the redemption of the NCDs, the Parties hereby agree that the KIPPL NCDs shall be redeemed in full in priority to the JCK NCDs.

8. REPRESENTATIONS AND WARRANTIES

[illegible] Representations of KIPPL

(a) KIPPL represents and warrants to the other Parties that the following representations ("KIPPL Representations") are true and correct as on the Execution Date and shall be true and correct on the Pre-Closing Date and the Closing Date:

(i) it has the power and authority to execute, deliver and perform this Agreement, consummate the transactions contemplated herein and is not prohibited from entering into this Agreement.

(iii) Its execution of this Agreement has been duly authorized and upon execution and delivery, this Agreement will be a legal, valid and binding obligation of such Party, enforceable in accordance with its terms.

(iv) Its execution and delivery of this Agreement and the provisions, agreements or undertakings under this Agreement do not violate any Applicable Law or agreements or any other instruments which it has executed or is bound by; and

(v) Its execution and delivery of this Agreement and the provisions, agreements or undertakings of such Party under this Agreement do not violate or contravene the provisions of or constitute a default under any document, contract or Governmental Approvals which are applicable to it.

7.2 **Representations of NCK**

(i) NCK represents and warrants to the other Parties that the following representations ("NCK Representations") are true and correct as on the Execution Date and shall be true and correct on the Pre-Closing Date and the Closing Date:

(a) It has the power and authority to execute, deliver and perform this Agreement, consummate the transactions contemplated hereunder and has all permissions [illegible] with this Agreement.

(b) Its execution of this Agreement has been duly authorized and upon execution and delivery, this Agreement will be a legal, valid and binding obligation of NCK enforceable in accordance with its terms.

(c) Its execution and delivery of this Agreement and the provisions, agreements or undertakings under this Agreement do not violate any Applicable Law or agreements or any other instruments which it has executed or is bound by.

(d) Its execution and delivery of this Agreement and the provisions, agreements or undertakings of such Party under this Agreement do not violate or contravene the provisions of or constitute a default under any document, contract or Governmental Approvals which are applicable to it; and

(e) NCK has been appointed by [illegible] as its authorised representative to undertake all actions as referred to or pursuant to the Definitive Agreements.

7.3 **Representations and Warranties of the Company**

(ii) The Company and JCK hereby represent and warrant to EIPFL that each of the Company Representations are true and correct as of the Execution Date and shall be true and correct on and as of the Pre-Closing Date and the Closing Date;

(iii) The Company and JCK hereby warrant to EIPFL that each of the Land Warranties are true and correct as of the Execution Date and shall be true and correct on and as of the Pre-Closing Date, the Closing Date and the Agreement to Sell Date.

(iv) The Company and JCK acknowledge that EIPFL has entered into the Definitive Agreements and agreed to undertake the Transactions contemplated herein and therein, inter alia upon the basis of and in reliance upon the Company Warranties and JCK Representations.

3.4 The Warranties shall be deemed to be repeated on the Pre-Closing Date and the Closing Date by reference to the facts and circumstances then existing as if references in the Warranties to the Execution Date were references to the Pre-Closing Date or the Closing Date. The warranties set out in part B of schedule 3 shall be deemed to be repeated on the Agreement to Sell Date by reference to the facts and circumstances then existing as if references in the warranties to the Execution Date were references to the Agreement to Sell Date.

3.5 None of the Warranties shall be limited or qualified by any actual or constructive knowledge on the part of the other Parties or any of their Affiliates or any of their agents, representatives, officers, employees, advisors or any of the Directors appointed by such other Parties or any of their Affiliates.

3.6 Each of the Warranties shall be construed as a separate representation, warranty, covenant or undertaking, as the case may be, and shall not be limited by the terms of any other representation or warranty or by any other term of this Agreement, and in the event and to the extent that any such representation and warranty expressly provides an exception, condition or qualification thereto by reference to a circumstance or fact stated in such representation and warranty, such exception, condition and qualification shall be applicable only and limited to such representation and warranty and shall not, and shall in no circumstances be deemed to, apply as an exception, condition or qualification to any other representation or warranty made in this Agreement unless and to the extent expressly stated in such other representation or warranty.

3.7 The Company and JCK acknowledge and agree that each of the JCK Representations, Company Warranties, indemnities, undertakings, representations, warranties and covenants given by the Company and JCK in this Agreement and other Definitive Agreements form a material part, the consideration to EIPFL for entering into this Agreement and the other Definitive Agreements and for EIPFL agreeing to the transactions contemplated herein and therein.

7.[illegible] If at any time any Party becomes aware of a fact or circumstance that may cause any of the Warranties to become misleading, such Party shall promptly inform the other Parties of such fact or circumstance in writing. Upon receipt of any such notification from JCK or the Company, EEPL shall have the option to terminate this Agreement prior to the Closing Date.

8. INDEMNITY

8.1 JCK and RK (for the purpose of this Clause the "Indemnifying Persons") agree to jointly and severally indemnify, defend and hold harmless EEPL and its directors, officers, agents, employees, Affiliates, successors, representatives, shareholders (as the case may be) and at the option of EEPL, the Company (for the purposes of this Clause each, an "Indemnified Person"), from and against any and all Losses suffered or incurred by EEPL or the Company in connection with or arising out of any breach of JCK Representations, Company Warranties or any of the terms or covenants set forth in this Agreement.

8.2 The indemnity provisions set forth in clause [illegible] to 8.10 of the SSPA shall apply mutatis mutandis to this Agreement and shall be deemed to be incorporated herein by reference. Any reference to "Definitive Agreements" thereunder includes a reference to this Agreement as well.

9. TERM AND TERMINATION

9.1 Term

This Agreement shall be co-terminus with the SSPA and shall come into effect on the date hereof and remain valid and binding on the Parties until such time that it is terminated in accordance with Clause 9.2 below.

9.2 Termination

This Agreement may be terminated prior to Closing by EEPL:

(i) simultaneously with the termination of the SSPA;

(ii) pursuant to Clause [illegible], if Closing has not occurred on or before the Long Stop Date, unless the Parties mutually agree in writing to extend the Long Stop Date; or

(iii) if any consent has been taken, any Order has come into effect, or any Applicable Law having been enacted, promulgated or issued or deemed applicable to the transactions contemplated by the Definitive Agreements which would prevent, enjoin or otherwise prohibit or make illegal the consummation of the Transactions contemplated hereby which would be expected to otherwise result in a diminution of the benefits of the transaction contemplated hereby or thereby.

17. **Effect of Termination**

(i) The rights to terminate as aforesaid shall be without prejudice to all the contractual, equitable and legal rights and remedies available to either JCK or EPPL, as the case may be.

(ii) The termination of this Agreement shall not relieve any of the Parties of any obligation or liability accrued prior to the date of termination.

(iii) The provisions of Clauses 1 (*Definitions and Interpretation*), 3 (*Representations and Warranties*), 8 (*Indemnity*), Clause 17 (*Effect of Termination*) and 18 (*Miscellaneous*) as are applicable to [illegible] [illegible] survive termination of this Agreement.

18. **MISCELLANEOUS**

The provisions of Clauses 9 (*Dispute Resolution*), 10 (*Confidentiality*), 11 (*Notices*) and 12 (*Miscellaneous*) of the EPPA shall mutatis mutandis apply to this Agreement and shall be deemed to be incorporated herein by reference. Any reference to "Agreement" or "EPPL Sponsorship Principles" thereunder shall be read as a reference to this Agreement and the EPPL [illegible] respectively.

**IN WITNESS WHEREOF** the Parties hereto have executed this Agreement on the day and year first above written.

[THE REMAINDER OF THIS PAGE HAS BEEN INTENTIONALLY LEFT BLANK]

**IN WITNESS WHEREOF**, the Parties have executed this Agreement on the day and year first above written.

For and on behalf of **[illegible] INDIA PROJECTS LIMITED**

Authorised Signatory

Name:

Designation:

FOR EMBASSY INDUSTRIAL PARKS PRIVATE LIMITED

______________________________

Name:

Designation:

Signature page to the [illegible]

Signed on behalf of [illegible] LOGISTICS PARK PRIVATE LIMITED

Authorised Signatory

Name:

Designation:

**[illegible]**

[illegible]

[illegible]

[illegible]

SCHEDULE 1

SHAREHOLDING PATTERN OF THE COMPANY

PART A

ON EXECUTION DATE

| Sl. No. | Name of the Shareholder | Number of Shares | Percentage of Fully Diluted Share Capital |
|---|---|---|---|
| 1 | [illegible] | [illegible] | [illegible] |
| 2 | Krishan Kapur | [illegible] | [illegible] |
| 3 | Jyoti Kapur | [illegible] | [illegible] |
| 4 | [illegible] Krishan Kapur | [illegible] | [illegible] |
| 5 | [illegible] | [illegible] | [illegible] |
| 6 | [illegible] Kapur | [illegible] | [illegible] |
| 7 | [illegible] Kapur ([illegible] Kapur) | [illegible] | [illegible] |
| | Total | [illegible] | 100% |

PART B

ON CLOSING DATE IMMEDIATELY PRIOR TO THE CLOSING

| Sl. No. | Name of the Shareholder | Number of Shares | Percentage of Fully Diluted Share Capital |
|---|---|---|---|
| 1 | [illegible] India Property Limited | [illegible] | [illegible] |
| 2 | Krishan Kapur | [illegible] | [illegible] |
| 3 | Jyoti Kapur | [illegible] | [illegible] |
| 4 | [illegible] Krishan Kapur | [illegible] | [illegible] |

| | | | |
|---|---|---|---|
| 7. | [illegible] | 1 | [illegible] |
| 8. | [illegible] | 1 | [illegible] |
| [illegible] | [illegible] Kapur ([illegible] Kapur) | 1 | [illegible] |
| | Total | [illegible] | 100% |

**PART C**

**ON CLOSING DATE IMMEDIATELY POST THE CLOSING**

| Sr. No. | Name of the Shareholder | [illegible] | [illegible] | Number of Equity Shares on a Fully Diluted Basis | Percentage of Fully Diluted Share Capital |
|---|---|---|---|---|---|
| 1. | [illegible] Limited | [illegible] | [illegible] | [illegible] | [illegible] |
| [illegible] | [illegible] Limited | [illegible] | | [illegible] | [illegible] |
| [illegible] | [illegible] Kapur | [illegible] | | [illegible] | [illegible] |
| [illegible] | [illegible] Kapur | 1 | | 1 | [illegible] |
| [illegible] | [illegible] | 1 | | 1 | [illegible] |
| [illegible] | [illegible] | 1 | | 1 | [illegible] |
| [illegible] | [illegible] Kapur | 1 | | 1 | [illegible] |
| [illegible] | [illegible] Kapur ([illegible] Kapur) | 1 | | 1 | [illegible] |
| | Total | [illegible] | [illegible] | [illegible] | 100% |

## SCHEDULE I

## CONDITIONS PRECEDENT

1. The Company Warranties and A.K. Representations shall continue to be true and correct in all respects as of the Closing Date.

2. All regulatory and other approvals, including no-objection certificates from [illegible], required to consummate the transactions under the Definitive Agreements, shall have been obtained by ACK/the Company to the satisfaction of [illegible], and [illegible] have been provided with certified copies thereof within 30 (thirty) days from the Execution Date.

3. No event or circumstance or development which has resulted, or is reasonably likely to, have a Material Adverse Effect shall have occurred or be threatened to occur.

4. The Company and ACK shall have passed the Pre-Closing Resolutions and all necessary shareholders' and Board resolutions, filed Form [illegible] in relation thereto and taken all actions as required under the Applicable Law for executing, delivering, and performing its obligations under this Agreement.

5. The Parties shall have executed the Definitive Agreements and such other agreements as may be mutually agreed between them.

6. The Company shall have procured a valuation certificate from a "Registered Valuer" (as defined under the Act) specifying the valuation of the [illegible] CCDs.

7. ACK and the Company shall provide a certificate in writing to [illegible] confirming that:

   (i) ACK and the Company have performed and complied with all of their respective obligations required in this Agreement to be performed or complied with by them on or prior to the Closing Date as contemplated by this Agreement, and there are no breach of the Definitive Agreements;

   (ii) No action has been taken, no Order is in effect, and no Law has been enacted, promulgated or issued or deemed applicable to the transactions contemplated by or performance of this Agreement or the other Definitive Agreements which would restrain, enjoin, make illegal or otherwise prohibit the consummation of the transactions contemplated hereby or thereby or the performance hereof or thereof; and

   (iii) No legal proceedings have been instituted or threatened or claims or expenses made against the Company or ACK seeking to restrain or prohibit or obtain substantial damages with respect to the consummation of the transactions contemplated by or performance of this Agreement or the other Definitive Agreements.

## SCHEDULE 3

## CONDITIONS PRECEDENT SATISFACTION LETTER

[(Date) prior to the Closing Date]

To,

Investor: Infinium Parks Private Limited

Address: [illegible] Infantry Road, Bengaluru [illegible]

Re: Securities subscription agreement dated August [illegible], 2020 (the "SSA") executed inter alia between [illegible] Infinium Parks Private Limited, JCK India Projects Limited and Kathan Logistics Park Private Limited.

We refer to the SSA. In this letter, all capitalised terms used but not defined shall have the meaning given to them under the SSA.

The Company and JCK hereby confirm the fulfilment of the Conditions Precedent set out in Clause [illegible] read with SCHEDULE [illegible] of the SSA. The documents evidencing the fulfilment of the Conditions Precedent are enclosed herewith.

We further confirm that:

(i) no event which would, or is reasonably likely to, whether individually or in the aggregate, have a Material Adverse Effect has occurred or been threatened;

(ii) the Company Warranties and JCK Representations are true and correct as on the date of this letter and shall be true and correct as on the Closing Date;

(iii) the SSA is in full force and effect, and the Company and JCK have performed and complied in all respects with all of their obligations and agreements required under the SSA to be performed or complied with by each of them on or prior to the consummation of the Closing, and there has been no breach of the Definitive Agreements;

(iv) no order has been issued [illegible], and no Law has been enacted, promulgated or issued or deemed applicable to the transactions contemplated by the consummation of the SSA or the other Definitive Agreements which would restrain, enjoin, make illegal or otherwise prohibit the consummation of the Transactions contemplated thereby or the performance thereof; and

(v) no legal proceedings have been commenced or threatened or claims or demand made against the Company or JCK seeking to restrain or prohibit or obtain substantial damages with respect to the consummation of the transactions contemplated by or performance of the SSA or the other Definitive Agreements.

Yours sincerely,

For Kathan Logistics Park Private

Limited

Authorised Signatory

Name:

For JTK Infra Projects Limited

Authorised Signatory

Name:

## SCHEDULE 1

## TERMS OF COMPULSORILY CONVERTIBLE DEBENTURES

1. **Face Value**

The CCDs shall have a face value of Rs. 100 (Rupees One Hundred only).

2. **Term**

Unless converted earlier in accordance with the terms hereof, the term of the CCDs shall be [illegible] years from the date of allotment, which term may be extended by the Board, with the consent of the holders of the CCDs in such manner as permissible under Applicable Law, subject to a maximum of [illegible] years from the date of allotment.

3. **Coupon Rate**

Throughout the term of the CCDs until conversion, each CCD shall carry a [illegible] coupon rate of 0.1% ([illegible] percent) calculated as a percentage of the face value of the CCD, which shall accrue and be payable on the [illegible] of each year during the term. If there are any deductions under Applicable Law, including but not limited to withholding taxes or other taxes payable on account of payment of [illegible] or [illegible] on any payments to be made to the holders of the CCDs, the Company shall [illegible] the interest payable to the holders and the amount received by the holders shall be net of such deductions.

4. **Participation in Dividends**

Upon conversion of the CCDs into Equity Shares, the holders shall be entitled to participate in the dividend on the Equity Shares, on a pari passu basis with the holders of all other Equity Shares in the Company.

5. **Voting Rights**

The CCDs shall not carry any voting rights until their conversion into Equity Shares in accordance with the terms.

6. **Conversion**

6.1 **Conversion Ratio**

The CCDs shall be compulsorily convertible into Equity Shares in the ratio of 1:1, in the manner set out in Paragraph 6.2.

6.2 **Conversion**

(i) Subject to compliance with Applicable Law and the [illegible] requirements, CCDs shall be compulsorily convertible into Equity Shares upon issuance of a conversion notice by [illegible]. The Company shall, upon receipt of a notice in this regard from [illegible], convert all the outstanding CCDs into Equity Shares.

(ii) Subject to Applicable Law, in the event of a proposed IPO or REIT/InvIT Listing (as defined under the Shareholders' Agreement), either prior to or after the expiry of the term of the CCDs and assuming that the CCDs have not been converted in accordance with Paragraph (i) above, all the outstanding CCDs shall be compulsorily converted prior to the said IPO or REIT/InvIT Listing. The Company shall, upon receipt of a notice in this regard from [illegible], convert all the outstanding CCDs into Equity Shares.

8.3 The Company shall undertake the following acts 15 (fifteen) days from the date of issuance of a conversion notice by [illegible], upon the occurrence of either of the events in Paragraph 8.2 above:

(i) Convening of a meeting of the Board, in which meeting the Company shall approve the following:

(a) The conversion of CCDs;

(b) The cancellation of the certificates representing such number of the CCDs, if applicable; and

(c) The issuance and allotment of such number of Equity Shares to the CCD holder;

(ii) Issuance of duly stamped share certificates for the relevant number of Equity Shares to the holder of CCDs or electronic credit of shares to the dematerialized accounts of the CCD holder to evidence such holder of the CCDs as the holder of Equity Shares issued upon conversion of such number of the CCDs to be mentioned in the conversion notice;

(iii) Updating its register of members, if any, to reflect the holders of the CCDs as the owners of the Equity Shares issued pursuant to the conversion of the CCDs as are mentioned in the conversion notice;

(iv) Filing with the jurisdictional Registrar of Companies the required Form in respect of allotment of the Equity Shares to the CCD holders pursuant to the CCD holders exercising their rights in accordance with this Paragraph;

(v) The Parties shall do all such acts and deeds as may be necessary to give effect to the provisions of this Paragraph, including without limitation, obtaining any approvals as may be required and convening a meeting of the Shareholders.

Transferability

The CCDs shall be freely transferable, subject to the articles of association of the Company and the Definitive Documents.

## SCHEDULE [illegible]

## TERMS OF NON-CONVERTIBLE DEBENTURES

1. **Face Value**

The NCDs shall have a face value of Rs. 100 (Rupees One Hundred) only.

2. **Term**

The term of the NCDs shall be 2 (two) years from the date of allotment unless repaid earlier in accordance with the terms hereof.

3. **Coupon Rate**

The NCDs shall not carry any coupon/interest.

4. **Security**

The NCDs shall be unsecured.

5. **Redemption**

5.1 In the event of a failure by the Company or JCK to complete the Conditions Precedent within 30 (thirty) days from the Execution Date, KSPPL shall have the right to issue a notice to the Company requesting the redemption of the NCDs. The Company shall, upon receipt of a notice in this regard from KSPPL, forthwith and not later than 15 (fifteen) days from the date of such notice, redeem all of the outstanding NCDs. In the event of any delay in redemption, the Company shall be liable to redeem the NCDs with an interest at the rate of 15% (fifteen percent) per annum calculated on the face value of the NCDs, from the date of the notice issued by KSPPL for redemption.

5.2 Unless otherwise redeemed pursuant to paragraph 5.1 above, within 7 (seven) Business Days from the expiry of the Term in accordance with Paragraph 2 above, the NCDs shall be mandatorily redeemed and repaid in full.

5.3 In the event of a proposed IPO or REIT/InvIT Listing (as defined under the Shareholders' Agreement), and assuming that the NCDs have not been redeemed in accordance with Paragraph 5.1 above, all the outstanding NCDs shall be redeemed prior to the said IPO or REIT/InvIT Listing. The Company shall, upon receipt of a notice in this regard from KSPPL, redeem all the outstanding NCDs or pay within a period of 15 (fifteen) Business Days from the date of the notice.

6. **Other Rights**

The NCDs shall have other rights that are set out in the Definitive Documents and under Applicable Law.

8. Transferability

The [illegible] shall be freely transferable, subject to the transfer restrictions of the Company's and the Definitive Documents.